THE MARITIME SAFETY COMMITTEE, RECALLING Article 28(b) of the Convention on the International Maritime Organization concerning the functions of the Committee, NOTING Conference Resolution 2, by which the 2002 SOLAS Conference adopted the International Code for the Security of Ships and of Port Facilities (International Ship and Port Facility Security (ISPS) Code) (hereinafter referred to as "the ISPS Code"), which bas become mandatory under chapter XI-2 of the International Convention for the Safety of Life at Sea (SOLAS), 1974 (hereinafter referred to as "the Convention"), NOTING ALSO article VIII(b) and regulation XI -2/1.1.12 of the Convention concerning the procedure for amending part Aof the ISPS Code, HAVING CONSIDERED, at its eightieth session, amendments to part Aof the - NOTING ALSO article VIII(b) and regulation XI -2/1.1.12 of the Convention concerning the procedure for amending part Aof the ISPS Code, HAVING CONSIDERED, at its eightieth session, amendments to part Aof the ISPS Code proposed and circulated in accordance with article VIII(b)(i) of the Convention, I. ADOPTS, in accordance with article VIII(b)(iv) of the Convention , amendments to part Aof the ISPS Code, the text of which is set out in the Annex to the present resolution; 2. DETERMINES , in accordance with article VIII(b)(vi)(2)(bb) of the Convention, that the amendments shall be deemed to have been accepted on 1 July 2008, unless, prior to that date, more than one third of the Contract ing Governments to the Convention or Contracting Governments the combined merchant fleets of which constitute not less than 50% of the gross tonnage of the world 'smerchant fleet, have notified their objections to the amendments; 3. INVITES Contracting Governmen ts to note that, in accordance with article VIII(b)(vii)(2) of the Convention, the amendments shall enter into force on I January 2009 upon their acceptance in accordance with paragraph 2 above; - 3. INVITES Contracting Governmen ts to note that, in accordance with article VIII(b)(vii)(2) of the Convention, the amendments shall enter into force on I January 2009 upon their acceptance in accordance with paragraph 2 above; 4. REQUESTS the Secretary-General, in conformity with article VIII(b)(v) of the Convention, to transmit certified copies of the present resolution and the text of the amendments contained in the Annex to all Contracting Governments to the Convention; 5. FURTHER REQUESTS the Secretary-General to transmit copies of this resolution and its Annex to Members of the Organization , which are not Contracting Governments to the Convention. RESOLUTION MSC.196(80) (adopted on 20 May 2005) AMENDMENTS TO THE INTERNATIONAL CODE FOR THE SECURITY OF SHIPS AND OF PORT FACILITIES (INTERNATIONAL SHIP AND PORT FACILITY SECURITY (ISPS) CODE) THE MARITIME SAFETY COMMITTEE, RECALLING Article 28(b) of the Convention on the Internati